

Approved as to
form only:
D. White
Date: 6/03/2016

AMENDMENT NO. 1
TO CITY CONTRACT NO. 6053

AGREEMENT BETWEEN THE CITY OF CHEYENNE
AND PAPPAS & PAPPAS ARCHITECTS, P.C.

CHEYENNE PUBLIC SAFETY CENTER

This Amendment No. 1 to City Contract No. 6053, dated August 27, 2013, between the City of Cheyenne and Pappas & Pappas Architects, P.C., is entered into between the parties to provide for additional architectural and engineering services in the amount of Seventy Two Thousand and Seventy Dollars (\$72,070.00). The additional services are described in Exhibits A and B attached hereto and incorporated herein.

This amendment is entered into pursuant to Section 6.3 of the Standard Form of Architects Services (AIA Document B201-2007) attached to City Contract No. 6053.

No other provisions of City Contract No. 6053 are amended and all other provisions remain in full force and effect.

Dated this _____ day of _____, 2016.

CITY OF CHEYENNE

Date

Richard L. Kaysen Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk

PAPPAS & PAPPAS ARCHITECTS, P.C.

Date

Stephan A. Pappas, President



PAPPAS & PAPPAS ARCHITECTS, P.C.

2617 E. Lincolnway, Suite A + Cheyenne, WY 82001 + 307.637.5227 + Fax: 307.638.1461 + info@pappasarchitects.com

January 28, 2016

Lt. Mark Munari
Cheyenne Police Department
2020 Capitol Avenue
Cheyenne, WY 82001

Re: Cheyenne Public Safety Center Additional Services Request

Dear Mark,

Items affecting design and construction for this project have developed which are either beyond the originally contracted scope of work, or the time frame originally developed by the contractor. Below are outlined the specific tasks and costs associated with each item. We respectfully ask for the City's approval of this request for additional services for your new facility.

The total sum for the additional architectural and engineering services will be \$101,323.00.

The additional services are as follows:

1. Scope of the Program

Increasing the building GSF from 86,685 SF to 93,919 SF. Program area designed increased from 63,000 SF to 67,179 SF. Value added to project = 4,176 SF x \$100/SF @ 7% design fee = \$29,253.

2. Change in Structural Engineering and Architectural Needs

The added mechanical penthouse required additional structural engineering and architectural coordination. Additionally, field investigation discovered that the east building required lateral bracing enhancements to offset alterations and removal of a prior interior structural wall (MMW FEE: \$21,500 – see attachment; J. Senger: 16 hours @ \$175/hr = \$2,800). The total sum for the additional structural engineering and architectural needs is \$24,300. See attached letter.

3. Additional Foundation Options

Coordination meetings and communication with Hayward Baker, FCI Contractors, Lt. Munari, Martin / Martin, and Inberg Miller to discuss additional foundation options because of unforeseen conditions with the bearing capacity of the soil in the 1960s building over a three month period (J. Senger: 16 hours @ \$175/hr). The total sum for the additional foundation options is \$2,800.

4. Antenna Tower Installation

Time to help specify the LCEMA Tower, coordination meetings and communication with Motorola, Lt. Munari, Glen Crumpton, Rohn, and LCEMA between. Also designing antenna guardrail on penthouse, and locating towers on roof while understanding interferences (J. Senger: 24 hours @ \$175/hr). The total sum to see the antenna tower installation through is \$4,200.

EXHIBIT

tabbies

A

5. Extension of Construction Duration

Additional construction administration time (3 months beyond original contract date for site visits and OAC meetings – J. Senger: 208 hours @ \$175/hr) caused by delays in foundation solution and implementation. The total sum to extend the construction duration is \$36,400.

6. Replat of Property

The total sum to prepare and record the replat of the property for your new facility is \$2,860.00. See attached email.

7. Additional IT Design Services

Revise technology plans to incorporate changing the third floor cabling from CAT6E to CAT6A. The total sum to revise the construction documents is \$1,510.00. See attached letter.

If you have any questions or need further information, please feel welcome to call or email me. Thank you.

Sincerely,



Stephan A. Pappas, AIA, LEED AP



February 13, 2014

Mr. Stephan Pappas
Pappas and Pappas Architects
2617 East Lincoln Way, Suite A
Cheyenne, Wyoming 82001

Re: Cheyenne Public Safety Center (CPSC)
Structural Engineering Additional Services

Dear Stephan:

As discussed last week, we are submitting our proposal for additional services on the Cheyenne Public Safety Center (CPSC) to include in our scope of work the structural analysis, design, detailing and Construction Administration necessary to add a new wind and seismic lateral system to the existing east building of the new Cheyenne Public Safety Center.

BACKGROUND

During the due diligence site walk on April 9, 2013, Martin/Martin, Inc. identified that the east building did not appear to have a lateral load resisting system for wind and seismic loads. Subsequently, during the structural as-built field measurement phase of the project, it was discovered that steel rod bracing and structural masonry walls have been removed from the original building. Installation of a new lateral system is required by code due to these discovered building modifications. While these upgrades are required by code, it is our opinion that these upgrades are appropriate to bring a facility of this use and construction type (un-reinforced masonry) to the current code standard. Doing so will provide the community the assurance that this facility, while undergoing significant investment of public money, will serve its purpose over its service life.

SCOPE OF WORK

Our understanding of the scope of work to complete this task is as outlined below:

1. Analyze Structure for IBC 2012 code level lateral loads from wind and seismic to the building.
2. Design the existing walls and parapets for lateral forces.
3. Provide retrofit details to strengthen walls and parapets.
4. Analyze the connections of the existing walls to the roof diaphragm.
5. Provide retrofit details between the walls and the roof.
6. Analyze the existing wood roof diaphragm.
7. Detail connections for new plywood roof diaphragm.
8. Design and detail new rod bracing at the east wall of the building (new rod bracing will connect to existing roof members, columns, and foundations.)
9. Evaluate existing footing below new rod bracing frames (footings sizes are unknown.)
10. Provide retrofit details, if needed, to strengthen foundations below rod bracing.
11. Design and detail new shotcrete walls/frames to resist lateral loads on the north, south, and west walls of the building.
12. Design and detail new interior CMU walls to resist lateral loads.
13. Design and detail new foundations below new CMU walls.
14. Construction Administration for new scope of work, including three (3) additional site visits.

Completion of the additional scope will be completed concurrently with the balance of the project. Additional submittals or early packages related to this scope have not been included at this time.

MARTIN/MARTIN WYOMING, INC.
4020 LARAMIE STREET
CHEYENNE, WYOMING 82009
307.637.8422 MMWYO.COM

Cheyenne Public Safety Center (CPSC)
February 13, 2014



COMPENSATION

To complete the above scope of additional work we propose a lump sum fee of \$21,500. We have assumed our primary AIA C401 contract with Pappas and Pappas Architects will be amended to reflect this proposal and that this proposal will be referenced as a scope definition document.

If you have any questions or points of discussion please do not hesitate to contact me directly.

Sincerely,

A handwritten signature in black ink, appearing to read 'John Shaffer', written over the typed name.

John Shaffer, PE
Principal/President
Martin/Martin Wyoming, Inc.

Stephan Pappas

From: Charlie Radich <cradich@pappasarchitects.com>
Sent: Wednesday, January 27, 2016 10:15 AM
To: Stephan Pappas
Subject: FW: CPSC Extra Services

From: Stephan Pappas
Sent: Tuesday, November 12, 2013 10:39 PM
To: Mark Munari (MMunari@cheyennepd.org)
Cc: Daniel White
Subject: CPSC Extra Services

Mark,

I finally have the additional fees for the two items that have come up that I believe you are asking us to add to the scope of services.

- 1) Extra fee to replat the property - \$2,860.00
- 2) Extra fee to provide and enhanced survey and party wall descriptions - \$3,850.00. This is less than an ALTA survey which would have been \$8,000.00

The total would be \$6,710.00. Because of the need to have the survey done ASAP, we have already begun working on it prior to an amendment to our contract.

Stephan



ASR-1

October 15, 2015

Stephen Pappas

Pappas and Pappas Architects
2617 East Lincoln Way
Cheyenne, WY 82001

Re: Cheyenne Public Safety

Additional Services Request #1 – Change Third Floor Cable from CAT6E to CAT6A.

Dear Stephen,

We have prepared this Additional Services Request (ASR) pertaining to our technology engineering services for the aforementioned project. This document defines our understanding of the requested Additional Services, along with proposed compensation for those services.

SCOPE OF ADDITIONAL SERVICES

The owner requested the cabling on the third floor be changed from CAT6E cable to CAT6A cable.

Rimrock will revise the Technology Plans to incorporate recent revisions requested by the owner. Our scope of work is based on a phone call received from Mark Munari to change the cable type. The following drawings will require changes.

T0.03 – Update equipment schedules.

T3.04– Update data center rack elevations.

T2.03 – Identify areas where CAT6A cable will be installed.

RIMROCK technology

10807 New Allegiance Drive, Suite 400 | Colorado Springs, CO 80921

719.539.1112 | www.rimrockgroup.com



BCER Engineering

5429 W. 1st Road, Suite 300 | Avondale, CO 80003

303.432.7400 | www.bcer.com

Excluded Services

The following services are not included in our scope of work at this time. However, we are available to provide these services for an additional fee should they be desired:

- **Meetings (in-person).** It is assumed that meetings (if needed) will be conducted via conference call or other means of electronic communication and that we will only need to attend the portion of the meeting directly related to our scope.

PROPOSED COMPENSATION

Not-to-Exceed

We propose providing our services to you on a Not-to-Exceed of \$1,510, billed according to our hourly rates in effect at the time of work (see below for our currently hourly rates).

Expenses are included in this amount and are subject to the terms of our previously executed Agreement.

HOURLY RATES

Our hourly rates in effect as of the date of this proposal are as follows:

EMPLOYEE TYPE	\$/HR	EMPLOYEE TYPE	\$/HR
Clerical	\$67	Engineer/Designer III	\$112
CADD Operator I	\$71	Senior Engineer/Designer	\$127
CADD Operator II	\$85	Project Manager	\$127
Project Coordinator	\$75	Senior Project Manager	\$144
Engineer/Designer II	\$96	Senior Consultant	\$160
Construction Administrator	\$101	Principal	\$202
Senior Construction Admin.	\$112		

These rates may be revised from time to time to reflect increases in the cost of our operations.

ACCEPTANCE

This ASR is valid for 30 days from the date submitted and is thereafter subject to withdrawal, revision, or renegotiation. If you are in agreement with the scope of this letter, please indicate by your signature below and include a signed copy of this ASR as an attachment to our Agreement.

We will await your Notice-to-Proceed prior to proceeding with the Work described herein.

Sincerely,

Accepted by:



John W. Thompson, PE, RCDD/NTS

Principal

Company Name (Printed)

Name (Printed)

Signature

Title

Date



PAPPAS & PAPPAS ARCHITECTS, P.C.

2617 E. Lincolnway, Suite A ♦ Cheyenne, WY 82001 ♦ 307.637.5227 ♦ Fax: 307.638.1461 ♦ info@pappasarchitects.com

June 1, 2016

Lt. Mark Munari
Cheyenne Police Department
415 West 18th Street
Cheyenne, WY 82001

Re: Cheyenne Public Safety Center Additional Services Request

Dear Mark,

I would like to thank you and Chief Kozak for meeting with me and Ed Bledowski of the DLR Group this morning to discuss the items in our add services request, date January 26, 2016. Our discussion focused on two items that were of concern; item #1, which addressed a scope change to the project, and item #5, which address a contract extension.

Item #1 requested additional fee for changes due to the increased scope of the project. The explanation dealt with an increase in square footage, which our contract does not address. Our contract does, however, identify a construction budget of \$18.2M, but the current cost is presently just over \$20.4M, a growth in scope of over 10%.

Item #5 requested additional fee for the extension of the project duration. It is asking additional construction administration fees for DLR Group to cover a three-month extension period. In reality, the project has extended 5 months.

During our discussion, it was agreed by all that the project has been extended by five months and that additional fee was warranted. Even though it has been extended by five months, DLR Group is still only requesting the amount submitted for the three-month extension.

Regarding the increase in fee due to increased scope identified in item #1, it was agreed that the scope did increase, however, the city had issues with some problems that they felt were design related, and that the architect bore some responsibility for. DLR Group agreed to drop the request for the scope fee increase as remuneration for design related problems. Everyone was very comfortable with this compromise.

To recap, item #1, in the amount of \$29,253, will be dropped from the add services request, leaving items 2 through 7 as valid items for payment. Please note that Pappas & Pappas Architects has not applied a mark-up on any of the additional fees requested by our consultants.

Please let me know if this accurately expresses the discussion and decisions reached in our meeting this morning. Thanks so much for taking the time to meet with us.

Sincerely,

Stephan A. Pappas, AIA, LEED AP

C: Chief Brian Kozak
Ed Bledowski

